



EVL1 — Introduction to Evidence and Proof

Module 7 — Presumptions

Lesson 1: Types of Presumptions

Student Lesson Notes

WHAT IS A PRESUMPTION?

Opening Scenario

A woman has been missing for eight years. Nobody has heard from her. Her family applies to court to have her declared legally dead so they can administer her estate. They cannot prove she is dead — but they can prove she has not been heard of for more than seven years by those who would have expected to hear from her.

Ugandan law provides that once this primary fact is proved, the court may presume the person is dead without direct proof of death. This is a presumption at work.

Presumption: A rule of law that requires or permits a court to take a particular fact as established once another fact — the primary fact or basic fact — has been proved, without requiring direct proof of the presumed fact.

Two Main Categories

Rebuttable Presumption: A presumption that the law allows but that the opposing party can challenge and displace by adducing sufficient contrary evidence. Once sufficient contrary evidence is adduced, the presumption ceases to operate.

Irrebuttable Presumption (Conclusive Presumption): Cannot be challenged regardless of what evidence the opposing party produces. Once the primary fact is established, the presumed fact is taken as conclusively true as a matter of law.

How Presumptions Interact with the Burden of Proof

When a presumption operates, the party in whose favour it operates does not need to prove the presumed fact. The opposing party must then adduce evidence to rebut the presumption (if rebuttable). This directly affects the evidential burden — presumptions shift it to the opposing party.

REBUTTABLE PRESUMPTIONS

Key Rebuttable Presumptions in Ugandan Law

Presumption of Death — Section 107, Evidence Act Cap. 8: When a person has not been heard of for seven years by those who would naturally have heard of them if alive, the person is presumed dead. Rebuttable by evidence that the person is alive.

Presumption of Legitimacy: Children born during a lawful marriage are presumed to be the legitimate children of the husband. Rebuttable by evidence of non-access during the period of conception.

Presumption of Regularity: Acts done in an official capacity are presumed to have been done properly and regularly. Rebuttable by evidence of irregularity or unauthorised conduct.

Presumption of Sanity: Every person is presumed sane until the contrary is proved. This is why the defence of insanity places the burden on the accused — they must rebut this presumption by proving insanity on the balance of probabilities under Section 11 of the Trial on Indictments Act Cap. 25.

Presumption of Continuance: A state of affairs proved to exist at a particular time is presumed to continue until the contrary is shown.

How Rebuttable Presumptions Affect the Burden

A rebuttable presumption shifts the evidential burden to the opposing party. The standard required to rebut varies — some can be displaced by any contrary evidence, others require proof on the balance of probabilities.

***PRACTICAL IMPORTANCE:** The presumption of regularity is critical in Ugandan land cases where official documents (certificates of title) are produced — they are presumed to be correctly issued until evidence of fraud or irregularity rebuts the presumption.*

IRREBUTTABLE PRESUMPTIONS

Irrebuttable presumptions cannot be displaced by any evidence however cogent. They effectively operate as rules of substantive law rather than mere evidential rules.

Most Important — Age of Criminal Responsibility

Under the Penal Code Act Cap. 128, a child under the age of twelve years is conclusively presumed to be incapable of committing a crime. This cannot be displaced by any evidence — no matter how convincing — that the specific child understood the nature and wrongfulness of their act. Once it is established that the child was under twelve at the time, the proceedings must terminate.

Other Irrebuttable Presumptions

Conclusiveness of Judgment: Once a matter is finally decided by a court of competent jurisdiction, the judgment is conclusively presumed to represent the correct legal position between the parties — connecting to res judicata from Module 4.

Registration of Title — Registration of Titles Act Cap. 240: A registered certificate of title is conclusive evidence of ownership in the ordinary course. Challengeable for fraud but the registered owner is conclusively presumed to be the legal owner absent such challenge.

Why Irrebuttable Presumptions Exist

They exist because some legal consequences are considered so important — from a policy, fairness, or certainty perspective — that they should not be open to challenge case by case. The protection of young children from criminal prosecution regardless of individual development is a clear example.

LESSON SUMMARY — KEY POINTS

- ✓ A presumption allows a court to take a fact as established once a primary fact is proved — without direct proof of the presumed fact
- ✓ Two categories: rebuttable (can be displaced by contrary evidence) and irrebuttable (conclusive — cannot be displaced regardless of evidence)
- ✓ Key rebuttable presumptions: death (Section 107 Evidence Act Cap. 8 — 7 years absence), legitimacy, regularity, sanity, continuance
- ✓ Presumption of sanity explains why the accused must prove insanity on the balance of probabilities under Section 11 Trial on Indictments Act Cap. 25
- ✓ Most important irrebuttable presumption: child under twelve conclusively incapable of crime under Penal Code Act Cap. 128
- ✓ Irrebuttable presumptions effectively operate as rules of substantive law
- ✓ Presumptions shift the evidential burden to the opposing party to rebut

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. Define a legal presumption and explain the difference between rebuttable and irrebuttable presumptions.
2. What is the primary fact required to trigger the presumption of death under Section 107 of the Evidence Act Cap. 8?
3. Why does the presumption of sanity mean the accused must prove insanity rather than merely raising it?
4. A child aged ten is charged with theft. What irrebuttable presumption applies and what is the consequence?
5. Give two examples of irrebuttable presumptions in Ugandan law and explain why they cannot be challenged.